

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

June 28, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Recognition of 2010 Wyoming Association of Municipalities Innovation Awards to the City of Cheyenne. Mayor Kaysen advised the City was recognized with the following innovation awards recently at the Wyoming Association of Municipalities summer convention: Fire and Rescue Dept., Emergency Services Rehabilitation Unit; Sanitation Zonar GPS System; Parks and Recreation Dept., David R. Romero Youth Activity and Community Center, and Metropolitan Transportation Organization, Transportation Safety Implementation Effort and Wayfinding Plan. Mayor Kaysen recognized individual staff members whose departments received awards, and expressed appreciation to all staff who assisted with the program areas that had been recognized by WAM.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Case, and pursuant to support received by Ms. Broyles and Mr. Pierson, agenda items #23 and #24 were removed from the Consent Agenda. Comment on removal of agenda item #25 followed with Mayor Kaysen advising the item was not eligible to be removed from the Consent Agenda, pursuant to approved procedures by Council, as it was a referral to committee. During further comment, Mr. Brown raised a point of order stating the Mayor had already ruled that the item could not be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no".

[CA] Minutes from Regular Meeting of the Governing Body on June 14, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on June 21, 2010. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Pierson moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, Doug Vetter, City Engineer, provided information concerning a voucher payable to AVI Engineering for professional services for Henderson Basin Project, stating services being provided is follow-up to the Henderson

project which required re-mapping of area flood improvements. Upon inquiry involving a voucher payable to the Laramie County Treasurer for property tax due on the former Mary's Bake Shoppe site, now owned by the City, Dan White, City Attorney, advised he would research the City's exempt status requirements relative to property tax assessments. City Treasurer Barb Dorr indicated, due to timeliness involved with the payment, a manual check had been issued. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a Public Meeting for the purpose of receiving public comments for the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for FY2011. Joe Dougherty, Cheyenne Transit Director, advised the grant application is a request for operating and capitol assistance to help fund the Transit program; provided a hand-out (on file with City Clerk's office) referencing the budget for the grant, noting the funding level available is less than last year, and provided program operational information. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

"An Ordinance amending Ordinance No. 3880 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne." Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Dr. Rinne moved to amend Section 7, referencing furlough days, by deleting the word *leadership* following the words "city council," seconded by Ms. Ash. Comments followed on the purpose of the amendment, which would provide that the Mayor consult with all City Council members if furlough days are proposed. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Brown and Mr. Pierson voting "no". Main motion as amended carried. Voting "yes" – all members of the governing body. (#3897)

"An Ordinance amending Ordinance No. 3881 defining the terms and conditions of employment for uniformed employees of the Cheyenne Police Department." Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. It was clarified the word *leadership* had been previously deleted from the section involving furlough days pursuant to an amendment approved at the June 14th meeting. Motion carried. Voting "yes" – all members of the governing body. (#3898)

"An Ordinance amending the City of Cheyenne's Sanitation fee schedule." Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, noting the amendment would reduce the rate increase to 1% with the following exceptions: leaving the recycle rates as approved through the previous substitute, and leaving the following rates as originally proposed: Residential Manual Collection fee, \$20.00; Transfer Station Dumping Residential Fee, \$10.00; Yard Waste Collection Monthly Fee 95 Gallon, \$6.00 and Yard Waste Collection Monthly Fee for Residential and Commercial 1.5 CY fee, \$15.00, seconded by Dr. Rinne. Comments followed on increasing the rates pursuant to the Consumer Price Index to be consistent with other sanitation fee increases of 3.4%, approval of balanced budget with a 1% increase, monthly difference between a 3.4% increase (\$.54) and 1% increase (\$.16), effect of rate increases on low income residents, incremental and more frequent increases vs. larger non-frequent increases, and estimated FY2011 budget revenues/expenditures. Upon inquiry, Barb Dorr, City Treasurer, advised unknown expenses during a fiscal year could affect budget figures, citing an example involving a previous budget, following approval, involving increases in fuel costs for Fleet Maintenance. During discussion, City Clerk Carol Intlekofer reviewed the motions on the floor. Motion to amend by substitute carried. Voting "yes" – all members of the governing body with the exception of Mr. Brown and Mr. Pierson voting "no." Main motion as amended by substitute

carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown, Ms. Case and Mayor Kaysen voting “no”. (#3899)

“An Ordinance vacating the 15-foot alley within Civitan Park, two parcels of Civitan Park and the 60-foot right-of-way of Civitan Place between Cribbon and Dey Avenues, Arp Addition, Fifth Filing, Cheyenne, Wyoming (located between Cribbon and Dey Avenues, south of W. Leisher Road).” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Ms. Ash declared a conflict of interest (family affiliated ownership of property in the adjacent vicinity), and vacated Council Chambers. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#3900)

“An Ordinance repealing Chapter 5.72, Public Transport, in its entirety and re-creating Chapter 5.72, Public Transportation, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code” -- referred to Finance Committee (sponsor - Ms. Broyles).

“An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of tracts 7 and 10, Dell Range Addition, 2nd Filing; Lot 3 Smithson View, together with a portion of Carla Drive, Thomas Road and College Drive, Laramie County, Wyoming (generally located north of and adjacent to Carla Drive, between Ridge Road and College Drive)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution re-appropriating the fiscal year 2010 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113”. Motion (per Consent Agenda) carried. (#5215)

“A Resolution authorizing the filing of an application with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307”. Mr. Brown moved to adopt, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body. (#5216)

[CA] “A Resolution authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311.” Motion (per Consent Agenda) carried. (#5217)

[CA] “A Resolution implementing the provisions of Section 414(h)(2) of the Internal Revenue Code, regarding employer payment of employee retirement contributions to the Wyoming Retirement System for sworn officers of the Fire Department.” Motion (per Consent Agenda) carried. (#5218)

[CA] “A Resolution implementing the provisions of Section 414(h)(2) of the Internal Revenue Code, regarding employer payment of employee retirement contributions to the Wyoming Retirement System for non-uniformed and sworn officers of the Police Department.” Motion (per Consent Agenda) carried. (#5219)

[CA] “A Resolution Approving Temporary Water Service, by User’s Agreement, Stonehouse Incorporated.” Motion (per Consent Agenda) carried. (#5220)

[CA] “A Resolution Approving Water/Sanitary Sewer Service, by User’s Agreement, Mary A. Symons.” Motion (per Consent Agenda) carried. (#5221)

“A Resolution acknowledging receipt of and approving the 'Missile Drive Corridor Plan' prepared by Ayres Associates for the Cheyenne Metropolitan Planning Organization.” Mr. Collins moved to adopt, seconded by Mr. Brown. Upon inquiry, Sreyoshi Chakraborty, MPO, provided information on project costs, including the estimated cost (\$5.2 million) to implement the plan which will include Greenway extension and amenities, and funding sources, advising that implementation funding has not yet been identified. Upon further inquiry, Tom Mason, MPO Director, advised it will be up to the governing body to determine when to move forward with the engineering design stage and construction, contingent upon funding, and noted there are many elements affiliated with the project. He discussed potential funding sources and financial involvement by WYDOT in conjunction with preparation of the plan. Motion carried. Voting “yes” – all members of the governing body. (#5222)

“A Resolution acknowledging receipt of and approving the 'Cheyenne Wayfinding Plan Phase II' prepared by Quinby Clune Design and Nolte Associates for the Cheyenne Metropolitan Planning Organization.” Paula Qualls spoke in support of the plan generally, expressing concern with the proposed signage design, and stated she would like to see a similar Wayfinding plan for the South Greeley highway area. Mr. Collins moved to adopt, seconded by Ms. Ash. Upon inquiry, MPO Director Tom Mason and Sreyoshi Chakraborty, MPO, reviewed contractors (and subcontractors) involved with plan preparation and reviewed funding received toward the plan cost. Ms. Chakraborty reported the cost to implement the plan would be approximately \$520,000 and that no funding source has been identified at this time but that grant opportunities were being researched. Ms. Chakraborty explained this is a “stand alone” plan relative to the PlanCheyenne document, and reviewed sign design limitations pursuant to the MUTCD (Manual on Uniform Traffic Control Devices). Motion carried. Voting “yes” – all members of the governing body. (#5223)

[CA] “A Resolution supporting the continuation of the Optional One Percent Sales Tax for Calendar Years 2011 through 2014 and pledging that all revenues from this tax will be used for projects described in this resolution.” -- referred to Finance Committee (sponsors - Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mayor Kaysen).

[CA] County Preliminary Plat for Deerhaven Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts; Tract 2, Hermann Meadows Subdivision; Lot 2 and a portion of Lot 1, Block 1, Ley Subdivision, Laramie County, Wyoming (located between E. Fox Farm and E. Jefferson Roads, east of S. Greeley Highway) – referred to Public Services Committee (due to postponement from May 24, 2010).

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for Professional Legal Services. Motion (per Consent Agenda) carried. (#5564)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department and the Cheyenne Regional Airport Board for law enforcement services. Motion (per Consent Agenda) carried. (#5565)

Contract between the City of Cheyenne and Laramie County School District No. 1 for school resource officers for the 2010-2011 school year. Mr. Brown moved to approve, seconded by Mr. Pierson. Mr. Brown moved to postpone to July 26, 2010, seconded by Mr. Pierson. It was noted the reason for postponement is to allow for continuing discussion with the school district.

Motion to postpone carried. Voting “yes” – all members of the governing body.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC. Motion (per Consent Agenda) carried. (#5566)

[CA] Agreement between the City of Cheyenne and Laramie County Sheriff’s Department and Laramie County, Wyoming, for the housing of city prisoners at the Laramie County Detention Facility. Motion (per Consent Agenda) carried. (#5567)

[CA] Agreement for the Human Services in the Community between the City of Cheyenne and (1) Cheyenne Housing Authority, (2) Peak Wellness Center, Inc., Alcohol Receiving Center. Motion (per Consent Agenda) carried. (#5568/5569)

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services. Motion (per Consent Agenda) carried. (#5570)

[CA] Juvenile Accountability Block Grant Contract between the State of Wyoming, Department of Family Services, Division of Juvenile Services and the City of Cheyenne -- referred to Finance Committee.

[CA] Extension of Contract #5400 between the City of Cheyenne, Transit Division, and NextMedia Outdoor, Inc. for the purchase of advertising space on Cheyenne Transit Buses -- referred to Finance Committee.

[CA] Diversion and Transitional Services contract between State of Wyoming, Department of Family Services, Division of Juvenile Services and the City of Cheyenne, Youth Alternatives -- referred to Finance Committee.

[CA] Contract Modification #5 to Contract #4817 between the City of Cheyenne and H.W. Lochner, Inc. for additional services to prepare and submit Letter of Map Revision (LOMR) to FEMA for Crow Creek Flood Control Improvements Project (1% Sales Tax-Drainage Maintenance). Motion (per Consent Agenda) carried (amount not to exceed \$14,266.00). (#4817)

[CA] Contract Modification #3 to Contract #5045 between the City of Cheyenne and Ayres Associates for preparation and submission of an additional LOMR to FEMA for the Lower Dry Creek Reach between US 30 and the UPRR crossing as part of the Dry Creek - Sheridan Reach Flood Control Improvements Project (2007-2010 1% Sales and Use Tax. Motion (per Consent Agenda) carried (amount not to exceed \$58,920.00). (#5045)

Contract Modification No. 1 to Contract #5562 between JTL Group dba Knife River for the FY2010 City Overlay Project to leave existing traffic calming islands in place, delete new traffic safety islands from contract, place storm sewer in new alignment adding one 5 ft diameter storm sewer manhole to avoid conflicts with existing islands (2007-2010 1% Sales and Use Tax). Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Collins moved to approve, seconded by Ms. Ash. Discussion included the following topics: Accident traffic study relative to calming island areas on Vandehei; cost to remove existing islands; comments and input received from the public by Council members regarding the islands; traffic maneuvering and pedestrian safety concerns, and law enforcement of speed limits in lieu of calming islands. Upon inquiry, Tom Mason, MPO Director, reviewed traffic data history involving speeds in the area, and noted the islands were originally installed at the request of the

neighborhood. Mr. Mason also reviewed the use of center medians instead of calming islands to keep speeds down, and explained the purpose and general provisions of the neighborhood traffic management program. Discussion continued and included: Truck traffic off I-25 as a reason for the original installation of calming islands on Vandehi, public meetings held as part of the planning process involving the decision to implement the calming islands, and other needed street repair projects and prioritization of same. Upon inquiry whether a modification could be made to another area of the original contract, unrelated to the calming islands modification item on the agenda, City Attorney Dan White advised this would require preparation of a separate contract modification. Continuing discussion followed. Pursuant to questions and comments raised during discussion, Mayor Kaysen provided information on the proposed remedy to address any increase in traffic speeds if the current islands are removed (i.e. median re-design pursuant to the original contract without the modification), clarified his [election] campaign promise was only to review the calming island issue, and advised of input he had received from the public concerning the islands. Motion failed. Voting “yes” – Ms. Ash, Ms. Broyles, Mr. Collins and Mr. Spiker. Voting “no” – Mr. Brown, Ms. Case, Mr. Pierson, Dr. Rinne, Mr. Valdez and Mayor Kaysen.

[CA] Consideration of Bid # R-13-10, for furnishing seven (7) new 2010 Ford Crown Victoria vehicles with police package from Spradley Barr Motors of Cheyenne, WY, for the City Police Dept. Motion (per Consent Agenda) carried (amount not to exceed \$159,686.80).

[CA] Consideration of Bid #R-16-10 for furnishing eight (8) portable multi-parameter defibrillators from Physio-Control, Inc. of Redmond, WA for the City of Cheyenne Fire and Rescue Department. Motion (per Consent Agenda) carried (amount not to exceed \$223,194.95).

[CA] Consideration of Bid #R-14-10 for furnishing one new Wheel Excavator for the City of Cheyenne Sanitation/Landfill Department. (Solid Waste Management Fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-15-10 for furnishing one new Rubber Tire Tool Carrier Loader for the City of Cheyenne Sanitation/Landfill Department -- referred to Finance Committee.

[CA] Consideration of Bid #R-17-10 for furnishing & installing police car equipment in 6 new police cars from Wireless Advanced of Evans, CO for the City Police Department. (2007-2010 1% Sales and Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-23-10 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River of Cheyenne, WY, for the Dell Range resurfacing project -- referred to Finance Committee.

Re-appointments of Jo Butler, Robert Kanard, Bebe Molway, Carol Matteson Pascal, Terry Livingston, Abby Yenco, Jay Guerin, Dick Krahenbuhl, Bradley Oberg, Doyle Travis, Tom DeHoff, Nancy Olson and Rick Parish to the Greenway Advisory Committee. Mr. Pierson moved to approve, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Appointment of Laura Page to the Greenway Advisory Committee. Mr. Brown moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement -- referred to Finance Committee.

Announcement was made that due to the 4th of July holiday on Monday, July 5, 2010, the following meetings have been rescheduled for Tuesday, July 6, 2010: Finance Committee at 11:00 a.m., Room 122; regular Vouchers meeting of the Governing Body at Noon, City Council Chambers, and Public Services Committee at 12:15 p.m., Room 122, Municipal Building, 2101 O'Neil Ave., Cheyenne, WY.

Announcement was made of a Calcutta to be held Saturday, July 31, 2010 beginning at 5:30 p.m. at the VIP/Sponsor Tent located in Frontier Park in conjunction with the 2010 Cheyenne Frontier Days Rodeo. Proceeds to benefit Cheyenne area charities.

Announcement was made of a Calcutta to be held Friday, August 27, 2010 beginning at 5:30 p.m. at the Old West Museum, 4610 Carey Avenue, in conjunction with Laramie County Republican Party Fall fundraiser. Proceeds to benefit Laramie County Republican Party.

Under other business:

Lucinda Schmid expressed concerns with proposed expansion plans by Cheyenne Regional Medical Center into the Lakeview and Rainsford Historic Districts and submitted a petition (on file with City Clerk's office) signed by interested individuals requesting City communication assistance with the hospital. Mayor Kaysen advised the City is aware of expansion plans by the Medical Center and Doug Vetter, City Engineer, stated no formal plans have been submitted yet to the City. It was noted the City process will involve the opportunity for public input. Ms. Schmidt expressed that she feels there has been a lack of communication between the hospital and the neighborhood. Jan Nelson-Schroll also expressed concerns with the expansion plans and commented on community planning and City Council's role, encouraging the Council to be pre-active in promoting vital neighborhoods; light and noise pollution and preserving historic districts.

Police Chief Brian Kozak recognized the upcoming *Neighborhood Night Out* community event scheduled for July 13, 2010; advised the graffiti abatement program began June 28, 2010, and stated a drug recognition class for parents was scheduled for June 30, 2010, 6:00 p.m. at the Cheyenne Police Department. Upon inquiry later under other business, Chief Kozak advised 36 tickets were issued last month for violation of the cell phone usage while driving ordinance.

Comment was made concerning employee diligence when mowing around signs during maintenance operations.

City Attorney Dan White requested the governing body meet in executive session (legal briefing) on new litigation concerning the Southwest Drive annexation, and a potential complaint that may be filed by the City against the Laramie County Commissioners regarding a re-platting issue. Mr. Pierson moved to meet in executive session, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 8:10 p.m. following a brief

recess.)

There being no further business to come before the governing body prior to executive session, the meeting was officially adjourned at 8:27 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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